

Consumer Protection (General) Rules, 2020

MINISTRY OF CONSUMER AFFAIRS, FOOD AND PUBLIC DISTRIBUTION

(DEPARTMENT OF CONSUMER AFFAIRS)

NOTIFICATION

New Delhi, the 15 July, 2020

(Amended up to 15.07.2020)

G.S.R. 449(E).-In exercise of the powers conferred by sub-section (1) and clauses (b) and (c) of subsection (2) of section 101 of the Consumer Protection Act, 2019 (35 of 2019), the Central Government hereby makes the following rules, namely:-

1. Short title and commencement. - (1) These rules may be called the Consumer Protection (General) Rules, 2020.

(2) They shall come into force on the 20th day of July, 2020.

2. Definitions:- In these rules, unless the context otherwise requires,-

(a) 'Act' means the Consumer Protection Act, 2019 (35 of 2019);

(b) 'public utility service' means any-

- (i) transport service for the carriage of passengers or goods by air, road or water; or
- (ii) postal, telegraph, telephone or broadband service; or
- (iii) supply of power, light or water or fuel or natural gas to the public by any establishment; or
- (iv) insurance service; and
- (v) service in, or in connection with, the working of any major port or dock;

3. Public utility services to be establishments. - Public utility services shall be establishments for the purpose of Clause (19) of section 2.

4. Certain activities to be exempt from unfair trade practice.- Permitting of the following activities carried out for promoting directly or indirectly the sale, use or supply of any product or any business interest shall be exempt from the purview of unfair trade practices, namely:-

- (a) lotteries allowed under the Lotteries (Regulation) Act, 1998 (17 of 1998); and
- (b) games of chance or skill not prohibited under the Public Gambling Act, 1867 (3 of 1867), which are not gambling and wherein success depends on a substantial degree of skill and not chance.

5. Manner of issuing invoice or bill or cash memo or receipt for goods sold or services rendered.- (1) Every invoice, bill, cash memo or receipt for goods sold or services rendered, issued by a seller shall have the following minimum particulars, namely:-

- (a) The name and address of the seller;
- (b) a consecutive serial number not exceeding sixteen characters, in one or multiple series, containing letters or numerals or special characters (hyphen or dash, and slash, symbolised as "-" and "/" respectively) and any combination thereof, unique for a financial year;
- (c) the date of its issue;
- (d) the name of the consumer;
- (e) the description of goods or services;
- (f) the quantity, in case of goods;
- (g) the shipping address, where applicable;
- (h) the taxable value and discounts;

- (i) the rate of tax;
- (j) the signature of the seller or his authorised representative;
- (k) the customer care number or e-mail ID, where available, and
- (l) the total price in single figure, along with the breakup price showing all the compulsory and voluntary charges, such as delivery charges, postage and handling charges, conveyance charges and the applicable tax:

Provided that where such invoice, bill, cash memo or receipt is issued by a seller in electronic form, the signature of the seller is not required.

(2) The serial number on the invoice, bill, cash memo or receipt to be issued by a seller shall not be altered, removed, replaced, or erased under any circumstances.

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AMIT MEHTA, Jt. Secy.